

Cirque Corporation

Data Retention and Deletion Policy

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1. Introduction

Proper data retention and deletion practices are essential for compliance, security, and efficient operations at Cirque Corporation.

2. Purpose

This policy establishes requirements for retaining and securely deleting data based on legal, regulatory, business, and security requirements.

3. Scope

This policy applies to all data and records created, received, or maintained by Cirque Corporation, including electronic and physical records.

4. Retention Requirements

Data shall be retained according to:

- Legal and regulatory requirements
- Contractual obligations
- Litigation holds and legal discovery needs
- Business operational needs
- Historical and archival value

5. Retention Schedules

Retention schedules have been established for major data categories:

- Financial records: 7 years
- Employee records: 7 years after termination
- Customer contracts: Duration of contract + 7 years
- Security logs: 1 year minimum
- Backup data: 30-90 days
- Personal data: Only as long as necessary for processing purpose
- Other business records: As defined by business need and legal requirements

6. Data Deletion Requirements

Data must be securely deleted when:

- Retention period expires
- No longer needed for business purposes
- Requested by data subject (where required by law)
- Required by contract or agreement
- Subject to litigation hold is released

7. Secure Deletion Methods

Data deletion must render data unrecoverable:

- Electronic data: Secure deletion using approved tools (overwrite, degaussing, physical destruction)
- Databases: Secure deletion of records and backups
- Physical records: Shredding or secure disposal service
- Hardware: Sanitization or physical destruction before disposal
- Cloud data: Verification of deletion across all storage locations

8. Deletion Verification

Deletion activities shall be:

- Documented with date, method, and responsible party
- Verified to confirm completion
- Tracked in deletion log or records management system

9. Retention Exceptions

Data may be retained beyond normal retention period when:

- Subject to legal hold or litigation
- Required for ongoing investigation
- Contractually required for customer audit
- Approved by Legal counsel with documented justification

10. Personal Data Rights

Individuals have the right to request deletion of their personal data. Such requests shall be:

- Processed within required timeframes (typically 30 days)
- Evaluated for applicable legal exceptions
- Documented with outcome and rationale
- Executed across all systems and backups where feasible

11. Roles and Responsibilities

- Data Owners: Define retention requirements for their data
- IT Team: Implement technical deletion procedures
- Records Manager: Maintain retention schedules and track deletions
- Legal: Advise on legal requirements and litigation holds